

**Court No. - 32**

**Case :-** WRIT - C No. - 32166 of 2023

**Petitioner :-** M/S Ananya Enterprises

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Ltd.

**Counsel for Petitioner :-** Ashish Kumar, Munesh Kumar

**Counsel for Respondent :-** Alok Mishra

**Hon'ble Salil Kumar Rai, J.**

**Hon'ble Surendra Singh-I, J.**

List has been revised.

No one has appeared for the petitioner.

Put up again as fresh before appropriate Court on 04.10.2023.

This case shall not be treated as part heard or tied up to this Bench.

**Order Date :-** 20.9.2023

Mustaqeem.

**Court No. - 40**

**Case :-** WRIT - C No. - 32166 of 2023

**Petitioner :-** M/S Ananya Enterprises

**Respondent :-** Dakshinanchal Vidyut Vitran Nigam Ltd.

**Counsel for Petitioner :-** Ashish Kumar, Munesh Kumar

**Counsel for Respondent :-** Alok Mishra

**Hon'ble Mahesh Chandra Tripathi, J.**

**Hon'ble Prashant Kumar, J.**

1. Heard Sri Ashish Kumar, learned counsel for the petitioner and Sri Anuj Tripathi, Advocate holding brief of Sri Alok Mishra, learned counsel for electricity department.
2. Present writ petition has been preferred for quashing the impugned bill dated 21.08.2023 issued by respondent no.2 and not to take any coercive measures against the petitioner in pursuance of the said bill and reissue a fresh bill after making necessary correction.
3. Learned counsel for the respondent submits that for the relief sought the petitioner has got an efficacious remedy to move an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005 wherein it is provided that if a consumer disputes the accuracy of any bill, he may either make the payment under protest of an amount equal to the sum claimed from him, or the electricity charges calculated on the basis of average of electricity bills of the preceding six months, whichever is less, and file a complaint with the competent authority, before the due date for payment. The complaint shall be decided within 7 days and consumer shall be informed.
4. Accordingly, he submits that in case, the petitioner files an application under Clause 6.5 of the U.P. Electricity Supply Code, 2005, the same shall be processed by the competent authority as per law.
5. Considering the facts and circumstances, without adverting on merits, the writ petition is ***disposed of*** with the observation that in case, the petitioner, files an application under Clause 6.5 of U.P. Electricity Code, 2005 before the competent authority, definitely, the same shall be processed on merits by the competent authority.

**Order Date :-** 4.10.2023

S.P.